



U.S. Department of Justice

Federal Bureau of Prisons
Administration Division

Field Acquisition Office

Grand Prairie, Texas 75051

MARKET RESEARCH QUESTIONNAIRE

**MORTUARY SERVICES
FMC DEVENS
AYER, MASSACHUSETTS**

The Federal Bureau of Prisons (BOP), Field Acquisition Office (FAO), is conducting market research in compliance with Federal Acquisition Regulation, Part 10. This requirement is for the provision of **Mortuary Services**. The services will be provided at the Federal Medical Center (FMC) Devens, located at 42 Patton Road, Ayer, MA 01432. The Government intends to make a single award of an indefinite delivery/requirements type contract with firm fixed prices, consisting of one (1) base year and four (4) twelve-month option years at the unilateral discretion of the Government. The NAICS code is **812210 (Funeral Homes and Funeral Services)**. The small business size standard is **\$12.5 million**.

A draft copy of the **Statement of Work** is attached to this questionnaire for more specific details. Additional details will be forthcoming in the solicitation. A Government solicitation document for this requirement is being developed, of which a contract may or may not result. This market research is being conducted to determine interest and capability of potential sources for this requirement.

THIS IS A SOURCES SOUGHT ANNOUNCEMENT ONLY – Solicitations are **not** available at this time. This notice does not constitute a commitment by the Government. The information gathered from this market research will be vital in the formation and set-aside status of the solicitation.

THIS IS NOT A NEW REQUIREMENT – Services are currently in place for this requirement. The current incumbent is Lehman Reen Funeral Home, Inc. The contract was awarded in March 2022, in the amount of \$572,050.00 for a base year and four (4) one-year options. This contract is set to end on March 05, 2027.

Please answer the following questions:

1. The North American Industrial Classification System (NAICS) code for **Funeral Homes and Funeral Services** is **812210**, which sets the small business size standard at **\$12.5 million** (below **\$12.5 million** in gross revenues is considered small, above **\$12.5 million** in gross revenues is considered large). **Based on this standard, what is your business size, small or large?** _____ Small _____ Large

2. Is your company eligible for participation in one of the following small business programs? **If so, please indicate which programs below:**

- _____ 8(a) program
_____ Women-owned small business concern
_____ Economically Disadvantaged Women-owned small business concern
_____ Service-disabled veteran-owned small business concern
_____ Hub-Zone small business concern

3. Is your company certified and licensed to provide these services in the state of **Massachusetts**?

_____ Yes _____ No

4. Can your company provide these services as either the Prime Contractor or as a Subcontractor:

_____ **Prime Contractor** _____ **Subcontractor**

5. If you are a small business, what level of subcontracting, if any, would your firm utilize? Services (except construction) require at least 50 percent of the cost of contract performance incurred for personnel shall be expended for employees of the concern. _____ %

6. If you plan to subcontract any of the requirement, will your company be compliant with FAR 52.219-14?
_____ **Yes** _____ **No**

7. Is your company able to provide readily available, qualified employees to fulfill **FMC Deven's** requirement as specified in the first paragraph? _____ **Yes** _____ **No**

8. Is your company registered in System for Award Management (SAM)? _____ **Yes** _____ **No**
**All potential quoters are advised if a solicitation is issued it will include the clause at FAR 52.204-7 (Oct 2018) for System for Award Management (SAM). This clause requires all contractors doing business with the Federal Government after September 30, 2003, to be registered in the SAM database. If your company is not registered in SAM, registration can be completed at: www.sam.gov

9. Can your company provide **firm fixed unit pricing** for future contract periods (*for example:* a contract with a base year and four option years, equaling a total of five years)? **Please indicate the maximum number of years you can provide firm-fixed unit prices.**

_____ **5 years** _____ **4 years** _____ **3 years** _____ **2 years** _____ **1 year only**

10. The Federal Acquisition Regulations requires the following insurances policies: Workers' Compensation and Employer's liability not less than \$100,000; and General Liability no less than \$500,000 per occurrence; and Automobile Liability of at least \$200,000 person, \$500,000 per occurrence for bodily injury, and \$20,000 per occurrence for property damage. Are these rates and requirements consistent with regulatory requirements in **Massachusetts**? _____ **Yes** _____ **No** (If no, what are the standard rates per insurance?)

11. Are services of this type customarily available in the commercial marketplace? (Available to commercial business and industry or to the general public) _____ **Yes** _____ **No**

12. How many calendar days does your company need to prepare a proposal resulting from this solicitation?

_____ **15 days** _____ **30 days** _____ **45 days** _____ **60 days**

13. If awarded a contract, how many calendar days following an award would it take your company to begin providing services to the institution? **** Please note that all individuals providing services at the institutions must undergo a security clearance investigation. This investigation may take 30 calendar days or longer to complete.**
_____ **Calendar days**

14. The Federal Acquisitions Regulations requires the following clause in solicitations and contracts when design, development or operation of a system of records on individuals is required to accomplish the agency's function: 52.224-1 Privacy Act Notification, 52.224-2 Privacy Act and 52.224-3 Privacy Training. Is this requirement consistent with regulatory requirements specified in the first paragraph? _____ **Yes** _____ **No**

15. Does your company have an issue with the attached Statement of Work? _____ **Yes** _____ **No**

16. Has your company previously provided these types of services in a prison environment?

_____ **Yes** _____ **No**

17. Which of the following best describes your organization?

_____ Non-Profit _____ Faith-Based _____ Corporation _____ LLC

18. Please furnish the following information in reference to your firm:

Name of Business: _____

Address: _____

Point of Contact: _____

Telephone Number: _____

E-mail Address: _____

UEI: _____ **CAGE:** _____

VENDOR WEBSITE: _____

I am extremely appreciative of the time you have taken to complete this questionnaire. Please email your response to me at sburke@bop.gov **no later than May 22, 2026, at 10:00 am, EST.**

Should you have any questions or concerns, please feel free to contact me.

Sincerely,

Sarah Burke, Contracting Officer
Federal Bureau of Prisons
U.S. Armed Forces Reserve Complex
Field Acquisition Office
346 Marine Forces Drive
Grand Prairie, TX 75051

NOTE: The resulting solicitation will be distributed solely through the System for Award Management website at www.sam.gov. Hard copies of the solicitation will not be available. The website provides downloading instructions to obtain all documents relating to the solicitation. All future information concerning this acquisition, including the pre-solicitation notice, solicitation, and any subsequent amendments, will be distributed solely through the website. Interested parties are responsible for monitoring the website to ensure they have the most up-to-date information about the acquisition.

Mortuary and Autopsy Services STATEMENT OF WORK

Subject:

The Federal Bureau of Prisons (FBOP), Field Acquisition Office (FAO), located in Grand Prairie, Texas, intends to make a single award of an indefinite delivery/requirements type contract with firm fixed prices to a responsible contractor, who can provide Mortuary Services in accordance with the stated requirements. The provision of mortuary services may include, but is not limited to transportation, embalming, body preparation, clothing, filing of certificates and permits, casket, shipping, cremation, and burial services. The Contractor shall provide mortuary and autopsy services for the inmate population incarcerated at the Federal Medical Center (FMC), Devens located at 42 Patton Road, Ayer, MA 01432. General information regarding the Bureau of Prisons (BOP) and its facilities is located at www.bop.gov.

1. Period of Performance:

The anticipated period of performance shall be as follows:

Base Year	March 6, 2027 through March 5, 2028
Option Year 1	March 6, 2028 through March 5, 2029
Option Year 2	March 6, 2029 through March 5, 2030
Option Year 3	March 6, 2030 through March 5, 2031
Option Year 4	March 6, 2031 through March 5, 2032

2. SCHEDULE:

These services are a contractual agreement. The services will be provided on an as needed basis. The Contracting Officer will notify the Contractor when services will be required. The Contractor must be available for telephone calls 24 hours a day, 7 days a week, to include holidays. Services will not be required to take place on holidays.

3. PLACE OF PERFORMANCE:

The place of performance will be provided by the Contractor.

4. METHOD OF PERFORMANCE: The service provided, being professional in nature, will be provided in the manner as considered appropriate in the local community. The services will be reviewed and verified by the designated Contracting Officer's Representative (COR).

5. QUALIFICATIONS:

The Contractor must be properly licensed to perform these services in the Commonwealth of Massachusetts. The Contractor must agree that the quantity of all materials and services furnished will not be inferior to the specifications. All state and interstate shipment laws related to the embalming, preparation, burial, and shipment of the body must be fully observed and complied with, and in any case wherein state law contains requirements more rigid than the requirements set forth herein, such laws will be controlling.

6. SUPPLIES:

All supplies will be provided by the Contractor.

Mortuary and Autopsy Services STATEMENT OF WORK

7. SCOPE OF SERVICES:

Upon notification by FMC Devens of an inmate death, the contract funeral home shall arrange for the transportation of the body from the Medical Examiner's Office, local hospital, or institution to the contractor's funeral home. The Contractor shall transport remains in a closed hearse or other vehicle registered within the Commonwealth of Massachusetts as a hearse used exclusively for the purpose of transporting human dead bodies or funeral equipment. FMC Devens will provide the contract funeral home with an authorization to release the body from the Medical Examiner's Office signed by the next of kin.

On occasion, FMC Devens may request an autopsy be conducted. The Contracting Officer will notify the contract funeral home that an autopsy is needed. Suitable space in the undertaking establishment shall be available for the performance of postmortem examinations when requested by the Government. All autopsies must be conducted by a licensed forensic pathologist and a copy of the final autopsy report must be submitted to FMC Devens.

When burial is selected by the next of kin, the Contractor will embalm, dress, and provide the casket for the deceased. After the body preparation, the Contractor shall transport the body to the railway station, air terminal, or local cemetery as directed by the Contracting Officer. Cemeteries located within a 30-mile radius of the institution will be considered local cemeteries for local burial unless the Contracting Officer specifies otherwise.

In instances when the next of kin chooses cremation, the contractor will provide transportation to the crematory if different than the contract funeral home.

The Contractor shall secure or furnish all necessary papers and permits for shipment or interment. The Contractor shall provide FMC Devens with four certified copies of the death certificates.

The following specifications include the quality and character of material and service the Bureau requires. The Contractor agrees that the quality of all material and services furnished hereunder will not be inferior to these specifications unless otherwise specified and completely described in a letter accompanying the quote. All state and interstate shipment laws relating to the embalming, preparation, burial, and shipment of bodies must be fully observed and complied with, and in any case wherein the state law contains requirements more rigid than the requirements set forth herein, such laws will be controlling.

A: Preparation of Body

Complete embalming services will be performed including all standard practices to conform to the applicable state laws.

There are, in general, two different types of cases. Each body shall be embalmed according to its condition and in a manner to ensure thorough preservation of all tissues. All body orifices shall be treated and closed in accordance with state laws.

1. Normal Cases. This will be usually where death has been due to disease or other causes, and where there has been little or no mutilation or breakdown of body tissue. For such cases, preservation shall be accomplished by a thorough cavity treatment. Standard preservative solutions shall be used for arterial injections and cavity saturation.

Mortuary and Autopsy Services

STATEMENT OF WORK

2. Autopsy Cases. This will be where a partial or complete autopsy has been made to an extent which will not permit a normal arterial embalming operation. Sectional embalming shall be used to thoroughly preserve the body, including organs, and the inside of the body cavity shall be treated with a hardening compound. The cranial cavity shall be filled with Plaster of Paris or other suitable material and the calvarium securely replaced. All inclusions shall be tightly sutured and treated to prevent leakage.

NOTE: The Warden of FMC Devens may order an autopsy to be performed. In these cases the Contractor will be responsible for providing a facility suitable for having an autopsy performed. If the Warden requests an autopsy, FMC Devens will be responsible for the associated costs. The line item will not apply if the autopsy is remanded by the Commonwealth of Massachusetts Medical Examiner.

Autopsies must be performed by a licensed pathologist. A pathologist must have a current medical degree with a board certification in forensic pathology and maintain necessary certifications and/or licenses to perform autopsies in the Commonwealth of Massachusetts.

3. A post-embalming inspection of each body shall be made by the embalmer to determine whether the preservation is uniform and complete, or whether treatment is required. If further treatment is required, it shall be given before final delivery of the body. The body must be in an acceptable state of preservation at the time of final delivery.

4. The Contractor shall restore the body to be as lifelike in appearance as possible in the individual case, including shaving face and neck, trimming hair of head, neck, and face, dressing hair properly, applying suitable cosmetics, performing derma surgery and other restorative work as may be necessary.

5. The Contractor will furnish and dress the body in all necessary clothing, including cotton undershorts and undershirts, regular length socks, manufactured burial suit of dark or conservative color. Clothing for females will include suitable undergarments, hose, and a manufactured burial dress of conservative style and color. Clothing for individuals who identify as transgender will include suitable clothing that related to their self-identity.

6. The body will be placed in the casket in such a manner as to create an appearance of rest and composure, and to assure maintenance of position during shipment or local burial.

NOTE: Photographs of the remains, just prior to shipment to its final destination, shall be provided to the Contracting Officer to ensure compliance with the terms of the contract.

B: Caskets

A standard casket, manufactured in accordance with industry standards of modern practice, shall be furnished as follows:

1. **Metal**, State perfection cut, 20 gauge steel shelf, light copper with no shading, lacquer finish, interior plain panel, ivory twill, no shirring, copper hardware;

OR

Mortuary and Autopsy Services

STATEMENT OF WORK

2. **Wood**, Cloth Covered, State perfection cut, exterior steel plush, interior Crushed panel ivory twill, solid shirred, silver hardware.

ALTERNATE

3. **Sealed Casket, Metal (with Hermetic Seal)**, 20-gauge steel shell, constructed in accordance with industry standards of commercial practice so as to form a **hermetic seal** which will prevent leakage or escape of odors when properly closed and sealed. This item to be furnished only when ordered, as in the case of death by a communicable disease, to meet pertinent state or interstate regulations, or in case of body decomposed or odoriferous body.

4. **Oversized**, When required and approved, due to the size of the deceased, an extra-large casket shall be furnished.

C: Outside Container

Each casket shall be furnished with one of the following types of outside containers, depending upon the type of service required.

1. In cases of shipment by air, either a commercial air shipping bag used by commercial airlines or an air shipment tray available for purchase and use by Funeral Directors shall be provided.

2. In case of shipment by rail and/or foreign shipments, the outside shipping container shall be constructed of one inch seasoned wood in accordance with best modern practices and equipped with bolted handles complying with laws governing the same.

3. In cases of local burial, rules and regulations of the cemetery in which interment is made shall govern the type of container to be furnished. Unless otherwise specified, the outside container furnished shall be constructed of one inch seasoned wood manufactured in accordance with the best modern practice.

No handles will be required.

D Shipping of Body

In the event of an inmate death, the same regulations apply as those for transportation for a release, i.e., the Bureau pays for transport to:

1. Residence of Record, or
2. Place of Trial

The Contractor is responsible for making all shipping arrangements for transportation (i.e., air travel, train, etc.) If location is such that transportation by ambulance or hearse is advantageous to the Government, the burial contract mileage rate will be the burial services contract. Accordingly, when the deceased inmate's record of residence is outside the United States, transportation to the residence of record is appropriate. The Contractor is responsible for all related clearance for bodies that will be returned to foreign countries.

If the next of kin wants the body returned to a location other than the above-referenced locations, the next of kin is responsible for transportation from that point, or directly from the burial service contractor.

Mortuary and Autopsy Services

STATEMENT OF WORK

If the deceased inmate is an alien, the BOP will initiate contact with U.S. Citizenship and Immigration Services or the appropriate Consulate.

E: Cremation.

Occasionally, the legal next of kin makes written request for cremation.

1. If requested by the Government, OR due to extended time between death and receipt of all necessary legal documentation, normal arterial embalming will be performed in accordance with all standard practices. The Contractor shall conform to applicable federal, state, and local laws, and the requirement outlined above (A. Preparation Body).
2. The Contractor will be notified as soon as WRITTEN VERIFICATION has been received authorizing cremation.
3. Cremation must be carried out in a facility with by-laws and regulations approved by the Department of Public Health and an air pollution control permit issued by the Massachusetts Department of Environmental Protection, if cremation takes place in the Commonwealth of Massachusetts.
4. A standard container shall be provided that is sealed and capable of transportation through the U.S. mail or other common carrier.
5. Shipment of remains to the next of kin will be made by either the Contractor or the crematory, and will be sent first class, certified return receipt. Reimbursement will be paid by the Government at a rate of \$100.00 per mailing, unless there is a postal rate increase.

F: Local Burial.

For the provision of local burial services, a cemetery located within a 30 mile radius of the FMC will be considered local. The Contractor will notify the Contracting Officer of the cemetery to be utilized for local burials within 10 days after the effective date of contract award.

When local burial services are ordered, an FMC Chaplain will view the body prior to burial, as well as conduct and supervise a brief grave-side ceremony. The Contractor shall secure all necessary papers and permits for interment and work with the Contracting Officer and FMC Chaplain to schedule an acceptable time and date for local burial.

8. RELEASE OF INFORMATION:

After normal working hours and holiday, the Contracting Officer or Medical Duty Officer will provide the contractor with the inmate's name, social security number, and location of the body. The institution staff will always be the first to notify the next of kin regarding the death of an inmate and will communicate the family's wishes to the contractor. During normal working hours, FMC Devens staff will notify the Contractor with the above information.

The Contractor shall not provide the news media with any information. The Contractor will be required to notify the Contracting Officer of any outside requests for information.

Mortuary and Autopsy Services

STATEMENT OF WORK

The Contracting Officer will then submit the information to the Executive Assistant or designee.

Inmate Management

There may be an occasion where the contractor will be required to acquire the body from the institution. The contractor awarded this contract will not be subjected to frequent contact with inmates. As a contractor, you are not subject to Government supervision, except for security related matters. However, contractor performance will be closely monitored while in the institution.

Institution Security

The contractor agrees to adhere to all regulations prescribed by the institution for the safety, custody, and conduct of inmates. The contractor will attend an orientation program prior to assuming institutional involvement. As mentioned, an occasion may arise that will require the contractor to enter the institution.

Mortuary and Autopsy Services

SCHEDULE OF ITEMS

Schedule of Items: Contract Line Items as described below constitute services, equipment, and supplies to be provided by the Contractor under the terms of this contract.

001: Death Certificate: 4 certified copies per death

002: Body Preparation: (embalming, cosmetics, etc.)

002a- Normal Case

002b- Autopsied Case

03- Clothing: (Conservative colored suit of clothes with a tie and all necessary undergarments, socks, and shoes).

04- Professional Services: Mortuary Services include, but are not limited to, staff to respond to initial request for services; preparation and filing of necessary certificates and permits, recording vital statistics; coordination with those providing other services, cemetery, crematory, and others.

05- Caskets: (as specified in the Statement of Work)

005a- Wood Casket

005b- Standard Metal

005c- Metal with Hermetic Seal

005d- Oversized Casket

06- Transportation: Contractor to arrange for all air freight to ship the body to the designated funeral home. The government is to be billed the actual shipping cost supported by a copy of the air freight bill. This may also include transportation costs from receiving airport to receiving funeral home WHEN requested and supported by invoice from same.

006a- Price to be based on a per mile rate: Rate may apply to special cases where air connections are difficult or very expensive or time is critical.

006b- Pick-up and Delivery: Usually from contracted outside medical facility. Body to local Pathologist for autopsy and/or pick up body for embalming either prior to, or after autopsy.

07- Shipping Containers

007a- Air Tray (estimated shipments within the continental U.S.)

007b- Seasoned Wood (estimated shipments outside the continental U.S.)

08- Cremation: Crematory services, container (urn), shipping charges

008a- Crematory services

008b- Shipping charges

09- Local Burial: Local burial to include metal marker and transportation to local site in accordance with attached specifications.

10- Autopsy: The Warden of FMC Devens may order an autopsy to be performed. In these cases, the Contractor will be responsible for providing a facility, having an autopsy performed, and all associated costs. This line item will not apply if the autopsy is remanded by the Commonwealth of Massachusetts Medical Examiner.